

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Richard R. Romero
Judge of the Superior Court
County of Los Angeles
275 Magnolia Ave
Long Beach, CA 90802

Re: Valenzuela, Omar
CDC No.: V94389
Case No.: NA069430
Date of Sentence: November 13, 2006

Dear Honorable Richard R. Romero:

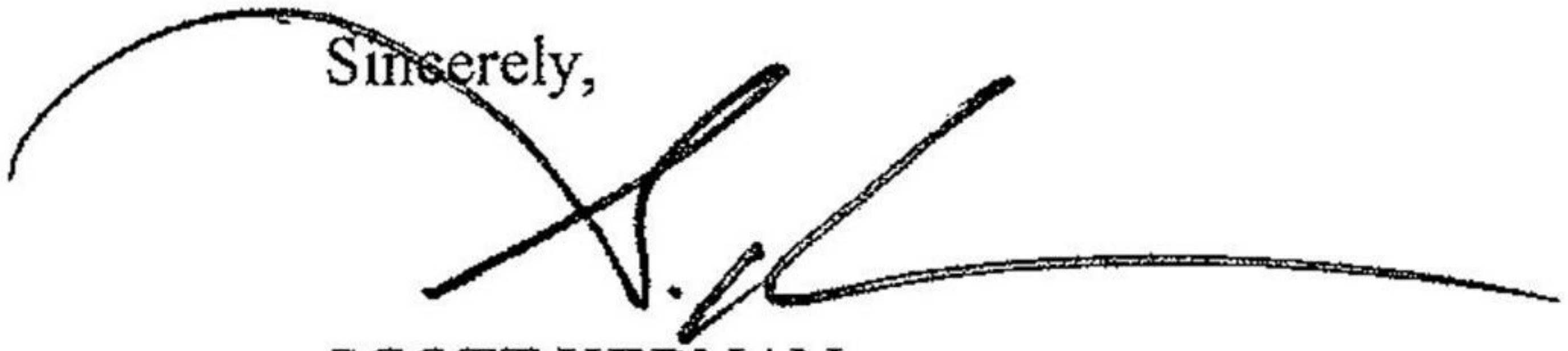
The purpose of this letter is to provide the court with authority to resentence Omar Valenzuela pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Valenzuela was sentenced in 2006, and was convicted of section 245, subdivision (A), Assault With A Deadly Weapon. The trial court sentenced inmate Valenzuela on November 13, 2006. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Valenzuela's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Valenzuela's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney

ABSTRACT OF JUDGMENT - PRISON COMMITMENT DETERMINATE SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM

[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES; SOUTH DISTRICT			CONFORMED COPY OF ORIGINAL FILED Los Angeles Superior Court NOV 27 2006 John J. Clarke, Executive Officer/Clerk		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: VALENZUELA, OMAR		DOB: 09-28-83	CASE NUMBER NA069430		
AKA: CII#: A19039399 BOOKING #: 8984888		☐ NOT PRESENT			
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT			
DATE OF HEARING 11-13-06	DEPT. NO. SOE	JUDGE RICHARD R. ROMERO			
CLERK DIANE MOORE	REPORTER KAREN WHITE	PROBATION NO. OR PROBATION OFFICER X01888628			
COUNSEL FOR PEOPLE CAROL L. ROSE		COUNSEL FOR DEFENDANT DAVID JAY HAAS - ATTY ☐ APPTD.			

1. Defendant was convicted of the commission of the following felony:

CNT.	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	TERM (L, M, U)	TIME IMPOSED
05	PC	245(A)	ASSAULT WITH A DEADLY WEAPON	05	11-13-06	JURY	U	YRS. MOS.
								4 0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
05	12022(B)	1	12022.7	3	186.22	4			8 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

Restitution Fine(s): \$200 per PC 1202.4(b) forthwith per PC 2085.5; \$200 per PC 1202.45 suspended unless parole is revoked.

Restitution per PC 1202.4(f): ☐ \$ / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
(*List victim name(s) if known and amount breakdown in item 7 below.)

Fine(s): \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

Lab Fee: \$ per HS 11372.5(a) for counts ☐ Drug Program Fee of \$150 per HS 11372.7(a).

6. TESTING: a. ☐ AIDS pursuant to PC 1202.1 b. ☒ DNA pursuant to PC 296 c. ☐ other (specify):

7. Other orders (specify): DEFT TO PAY \$20 SECURITY FEE.

8. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: 12 0

9. ☐ This sentence is to run concurrent with (specify):

10. Execution of sentence imposed

- a. ☒ at initial sentencing hearing. d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
b. ☐ at resentencing per decision on appeal. e. ☐ other (specify):
c. ☐ after revocation of probation.

11. DATE SENTENCE PRONOUNCED: 11-13-06 CREDIT FOR TIME SPENT IN CUSTODY: 547 TOTAL DAYS: 547 ACTUAL LOCAL TIME: 476 LOCAL CONDUCT CREDITS: 071 ☒ 4019 ☐ 2933.1 TIME SERVED IN STATE INSTITUTION: DMH CDC CRC

12. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

CLERK OF THE COURT. I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE: K. TUCKER 11-27-06

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213.5 for determinate sentences. Attachments may be used but must be referred to in this document.